

Court lawyer Prashant Bhushan. It sets the legal grounds to identify criminal negligence after an incident and also deter corruption and ensure that safety norms stipulated for buildings are adhered to.

After the incident, fire safety norms for cinema halls in Delhi were reworked, licences taken away from MCD and given to the Delhi Police and a system of multiple redundancies introduced. "The licence to run a hall is now given only after No Objection

fore fire safety norms came to be taken seriously, today we have panic bars on doors, sprinklers and fire alarms. Audience safety comes before commercial interests," says Shravan Shroff, director, Shringar Cinemas Private Limited. While the derelict theatre quickly became a symbol of lax safety norms of a bygone era, the struggle for justice was contemporary and fairly reminiscent of a spate of cases from the 1990s—the Jessica Lal murder and Sanjeev Nanda's BMW hit

tragedy, the government had transferred the case to CBI. The premier investigating agency completed its probe and filed a chargesheet in the metropolitan magistrate's court against 16 accused, including the Ansals.

The battle was long and painful and spread over seven years but the victims' kin fought on doggedly. It comprised over 1,000 hearings beginning in 1999 and saw the sessions court examining 115 witnesses before it delivered the judgement. During this pe-

riod, four of the accused or nearly a third of the 16 charged—including R. M. Puri, director of Ansal theatres and K.L. Malhotra, the theatre's, deputy director—passed away.

The families of the victims say they were intimidated by the defendants and taken to the higher courts at every given opportunity. Vital court papers went missing and just when it seemed the trial would go on forever, the Delhi High Court responded to a plea from the victims' families in May and asked for a speedy resolution of the case.

For the victims, who are also fighting for compensation, this is only the first of many legal battles. Responding to a writ petition for compensation filed in July 1997 before the Supreme

Court, the Delhi High Court announced in April 2003 that a compensation of Rs 18.5 crore would have to be paid to the victims. Of this, 55 per cent would be paid by Ansal Theatres and Clubotels, not including Rs 2.5 crore for setting up an advanced trauma centre in Delhi. Of the remaining amount, 15 per cent each would be paid by DVB, Deputy Commissioner Police (Licensing) and MCD. The case is still pending with the Supreme Court. "It may take another 10 years or even 20 years but I promised my children that I would get them justice," says the family member of one of the victims. For the families, the fight shall continue. *with Manoj Verma*

CRIMINAL NEGLECT

OWNERS: Sushil and Gopal Ansal, who owned Uphaar, have been sentenced to two years' imprisonment for blocking key exit points of the hall by putting extra seats.

MANAGERS: Radha Kishan Sharma neglected fire safety measures. Assistant Managers Nirmal Singh Chopra, Ajit Choudhary and Manmohan Unniyal have been accused of the same offences. Responsible for closing AC vents and ventilation outlets.

DELHI VIDYUT BOARD: DVB inspectors Brij Satija and Anand Gera, and senior fitter Bir Singh, inspected the theatre to check electrical fittings and didn't see that the electrical wires were fastened in a dangerous manner.

MUNICIPAL CORPORATION OF DELHI: Administrative officials Shyam Sharma and N.D. Tiwari who monitor all facilities didn't recommend suspension of theatre's licence.



IN MEMORIAM: Relatives paying homage to victims of Uphaar tragedy

Certificates are produced from the fire department, electricity department and police. Quarterly inspections are done and each time different officials are sent to ensure that security norms are in place. If any lapse is found, commissioner of police (licensing) issues a notice," says Delhi's Deputy Chief Fire Officer A.K. Sharma. An executive order by the lieutenant governor prescribes that all cinema halls should be jointly inspected quarterly by a joint team of the Delhi Police, the Delhi Fire Service, MCD and the electricity department. "Uphaar was built in an era be-

and run. It pitted the rich and the powerful with their high-profile lawyers and pliable witnesses against the common man. The 28 families of the 59 victims who had banded under the aegis of the Association of Victims of Uphaar Tragedy (AVUT) set up by Shekhar and Neelam Krishnamurthy were ranged against the theatre owners. Clearly, this was a battle no ordinary theatre owner could afford to fight but the Ansals—the construction tycoons who had shaped the Capital's skyline. AVUT was formed a fortnight after the tragedy by the couple who scanned obituary notices to contact the victims' kin. Within a month of the